

CHAPTER 51

An Act to amend the law relating to the Police Federation. [27th July, 1961].

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The members of the metropolitan police force below the rank of superintendent who are not members of the Police Federation shall be members of the Federation and of the branch of the Federation formed from members of that force; and accordingly section three of the Metropolitan Police Act, 1933 (which excludes certain inspectors in that force from membership of the Federation and of that branch) is hereby repealed and, subject to the next following section, the Schedule to the Police Act, 1919 (which contains the constitution of the Federation), shall have effect as if the said section three had not been passed.

inspectors etc. of metropolitan police to be members of Federation. 23 & 24 Geo. 5. c. 33. 9 & 10 Geo. 5. c. 46.

2.—(1) The branch boards, central conferences and central committees of the Federation shall include members representative of the interests of policewomen, who shall hold office in accordance with the provisions of Part I of the Schedule to this Act; and the Schedule to the Police Act, 1919, shall have effect subject to the provisions of Part II of the Schedule to this Act (which are consequential on the provisions of the said Part I).

Separate representation for policewomen on boards, etc. of Federation.

(2) Section thirteen of the Police Act, 1919 (which provides for the modification of the Schedule to that Act in its application to Scotland) shall apply to the Schedule to this Act as it applies to the Schedule to that Act.

3.—(1) This Act may be cited as the Police Federation Act, 1961.

Short title, commencement and extent.

(2) This Act shall come into operation on such day as the Secretary of State may appoint by order made by statutory instrument; and different days may be appointed for England and Scotland.

(3) This Act does not extend to Northern Ireland.

Section 2.

SCHEDULE

AMENDMENT OF CONSTITUTION OF POLICE FEDERATION

PART I

REPRESENTATION OF POLICEWOMEN ON BRANCH BOARDS, ETC.

Preliminary

1.—(1) In this Part of this Schedule—

- (a) any reference to a constable (except in paragraphs (b) and (c) below) is a reference to a policewoman of that rank;
- (b) any reference to the board is a reference to the constables' board established by the Police Act, 1919, for the branch in question of the Federation;
- (c) any reference to the conference or the committee is a reference to the central conference or the central committee established by that Act for constables;
- (d) any reference to a member of the board, conference or committee (except in paragraph 5 below) is a reference to a person holding office as such a member in pursuance of this Part of this Schedule;
- (e) "prescribed" means prescribed by regulations, and "regulations" means regulations made by the Secretary of State after consultation with the three central committees established by that Act sitting together as a joint committee.

(2) This Part of this Schedule shall apply to sergeants and inspectors respectively as if for any reference to a constable there were substituted a reference to a sergeant or, as the case may be, an inspector.

Additional members of Branch Boards, Central Conferences and Central Committees

2. If the number of constables in a branch of the Federation is one or two, the one or as the case may be the senior of the two shall be a member of the board; and if the number of constables in the branch is three or more, they shall elect one of their number to be a member of the board.

3.—(1) The constables of the metropolitan police force shall elect from among their number four persons, or such greater number of persons as may be prescribed, to be members of the conference.

(2) The members of the boards for other forces shall, for the purpose of electing members of the conference, be grouped together in the prescribed manner, and the members of each group shall elect from among their number the prescribed number of persons to be members of the conference.

4. The members of the conference shall elect one of their number to be a member of the committee.

5. The members of the board, conference or committee holding office in pursuance of this Part of this Schedule shall be additional to the number of members of that body holding office in pursuance of the Schedule to the Police Act, 1919.

Elections

6.—(1) Paragraphs 15 and 16 of the Schedule to the Police Act, 1919, and, subject to the following sub-paragraph, paragraph 17 of that Schedule (which regulate elections under that Schedule and provide for the filling of casual vacancies) shall apply for the purposes of this Schedule as they apply for the purposes of that Schedule.

(2) Provision may be made by regulations as to the holding of elections in pursuance of paragraph 3 above and the filling of casual vacancies occurring among persons elected at those elections; and nothing in the said paragraph 17 shall apply to those matters.

(3) For the avoidance of doubt it is hereby declared that, except as provided in pursuance of sub-paragraph (2) above, an election of members of a body in pursuance of this Part of this Schedule is to take place on the same occasion as the corresponding election held in pursuance of the Schedule to the Police Act, 1919.

PART II

CONSEQUENTIAL MODIFICATIONS OF SCHEDULE TO THE POLICE ACT, 1919, ETC.

7.—(1) Policewomen shall be disregarded for the purposes of paragraphs 3, 4, 6, 10 and 12 of the Schedule to the Police Act, 1919, so however that a policewoman who is qualified, otherwise than by virtue of Part I of this Schedule, to be elected as a member of a board, conference or committee or to be a member of a conference or an elector of a member of a conference or committee shall not be disqualified therefor by this sub-paragraph.

(2) A policewoman who, apart from this sub-paragraph, would by virtue of the provisions of paragraph 2 of this Schedule or of the foregoing sub-paragraph take or vacate office as a member of a board on the date of the coming into force of those provisions, shall not do so by virtue only of those provisions until immediately before the first meeting of that board which is held after the first election taking place after that date for membership of any board of the branch in question of the Federation.

8. Paragraph 11 of the Schedule to the Police Act, 1919 (which requires that persons who represent a force as members of a conference shall be members of that force) shall not apply to policewomen elected in pursuance of sub-paragraph (2) of paragraph 3 of this Schedule; and paragraph 23 of that Schedule (which provides for leave and expenses in respect of attendance at meetings of boards and other bodies) shall apply to meetings of electors in pursuance of that sub-paragraph as it applies to meetings of a board.

9. The provisos to paragraphs 17 and 21 of the Schedule to the Police Act, 1919 (which contain spent transitional provisions relating to elections and meetings) are hereby repealed.
